

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG GB DLKHX

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
RICHARD A. RUSTER, Ph.D., LPC, LICENSE NO. 822

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Richard A. Ruster, Ph.D., LPC (respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.

2. The Board granted respondent a license to practice as a Licensed Professional Counselor in Colorado on October 16, 1993. Respondent was issued license number 822. Respondent has been so licensed since that date.

3. On or about January 23, 1998 the Board received a complaint against respondent alleging practice below generally accepted standards of practice and dual relationship.

4. Following investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for initiation of disciplinary action regarding respondent's practice of professional counseling and psychotherapy.

5. Respondent understands that he has the right to a hearing with respect to the complaint filed against him. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to a hearing; relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that he has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his

right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent agrees that he freely and voluntarily enters into this stipulation and order including practice monitoring, and education.

7. Respondent admits and agrees as follows:

a. Respondent entered into a professional and therapeutic relationship with client DK as part of his practice of professional counseling and psychotherapy to provide client DK with professional counseling and psychotherapy as defined in C.R.S. §12-43-601(4) and §12-43-201(9).

b. The Board could establish a prima facie case of a statutory violation. Respondent believes he could present evidence in rebuttal and mitigation of said prima facie case. The parties wish to avoid the cost and time associated with full litigation of this matter and therefore enter into this stipulation and order.

8. Respondent will cease the practice of professional counseling and psychotherapy in Colorado on or before June 1, 1999. If and when respondent seeks to resume the practice of professional counseling and psychotherapy in Colorado he shall first notify the Board of his desire to resume the practice of professional counseling and psychotherapy. Prior to resuming the practice of professional counseling and psychotherapy respondent must have a Board approved mental health provider ("practice monitor") who evaluates and monitors his practice of professional counseling and psychotherapy and reports to the Board according to the terms of this stipulation and order.

9. Upon resuming the practice of professional counseling and psychotherapy respondent's practice of professional counseling and psychotherapy shall be on probation for period of three years. During the period of probation respondent can practice professional counseling and psychotherapy only if he complies with the conditions of probation and has a practice monitor in place.

10. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-704(1) and assure that he does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent's practice of professional counseling and psychotherapy shall be monitored by a practice monitor who

evaluates and monitors respondent's practice of professional counseling and psychotherapy and reports in writing to the Board in accordance with this stipulation and orders.

c. The practice monitor's first responsibility will be to conduct a practice evaluation. The practice evaluation will examine all aspects of respondent's practice of professional counseling and psychotherapy and his qualifications, ability and competence to practice professional counseling and psychotherapy. The practice monitor will determine whether respondent can practice professional counseling and psychotherapy in accordance with generally accepted standards of practice, with skill and safety for his clients and if respondent has the necessary qualifications, ability, and competence to conduct his practice of professional counseling and psychotherapy and report her/his findings to the Board.

d. Should the Board determine from the practice monitor's report that respondent can not perform any portion of his practice of professional counseling and psychotherapy with skill and safety for his clients and in accordance with generally accepted standards of practice, or does not have the appropriate qualifications, current ability, or competence necessary to perform any portion of his practice of professional counseling and psychotherapy respondent shall immediately cease any portion of his practice of professional counseling and psychotherapy that the Board determines, based on the evaluation, that he is not qualified, competent, or safe to conduct. Based on the Board's findings and the practice monitor's report, the Board will determine necessary actions that respondent must take and conditions he must meet so that he can practice professional counseling and psychotherapy with skill and safety for his clients and in accordance with generally accepted standards of practice in any area the Board finds he is not qualified, competent, or safe to practice professional counseling and psychotherapy. Once respondent satisfies the Board that he has taken the appropriate actions and met the conditions so that he is qualified, competent, and safe to fully practice professional counseling and psychotherapy he may resume the full practice of professional counseling and psychotherapy.

e. The practice monitoring shall be conducted as follows:

(i) Respondent's practice monitor shall monitor all of his cases. The practice monitoring shall consist of individual face-to-face contact between respondent and his practice monitor that occurs for one hour or such longer time as the practice monitor deems necessary for every twenty hours of client contact,

but at least once a month. During practice monitoring meetings, respondent and his practice monitor must review and discuss each of respondent's active cases at least once each month to allow the practice monitor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for his clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for his clients.

(iii) The practice monitor shall report the results of monitoring to the Board in writing and send a copy of each report to the respondent. The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e. on a monthly basis) for the first 12 reports. Following submission of the first twelve reports, unless otherwise directed by the Board, the practice monitor shall submit her/his reports on the fifth day of every third month (i.e. on a quarterly basis).

(iv) After the Board's written approval of the practice monitor, respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this order and of the Board's file; has read these documents; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that a written notification is provided to each client informing the client of the name address and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure form. The practice monitoring reports shall acknowledge that such written notification has been provided to each client.

(v) If, at any time, the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The

practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the respondent when he/she sends the report to the Board. Once such a report is submitted respondent shall immediately cease the practice of professional counseling and psychotherapy.

(vi) Either respondent or his practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event respondent does not have another Board-approved practice monitor prior to the termination, respondent shall cease the practice of professional counseling and psychotherapy until he obtains another Board-approved practice monitor. The new practice monitor's responsibilities shall be in accordance with this stipulation and order.

(vii) During the period of probation respondent shall not engage in the practice of professional counseling and psychotherapy without an approved practice monitor in place.

f. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, as defined in C.R.S. §12-43-201(9), or other mental health services, unless such supervision or consultation is monitored by respondent's practice monitor in accordance with the provisions of paragraph 10e.

g. Respondent shall complete at least twenty (20) hours of Board-approved professional continuing education during each year of probation. This education shall be designed to educate mental health professionals in appropriate client/therapist boundaries, dual relationship issues, family therapy, and other legal/ethical issues related to the practice of professional counseling and psychotherapy. Completion of an approved jurisprudence workshop shall be required as part of this education requirement.

h. Respondent shall not treat any client that is diagnosed with or displays symptoms that lead the respondent or his practice monitor to determine that the client's problems include issues that are beyond respondent's training, experience or competence. Should a new client seek psychotherapy services from respondent and he or his practice monitor determines (when the client initially seeks treatment or at any time after treatment is commenced) that the client has problems or treatment concerns that are beyond respondent's training, experience or competence,

respondent will refer that client to another practitioner for psychotherapy treatment and terminate any therapeutic relationship.

i. Respondent must take reasonable steps to assure that his practice monitor provides required reports to the Board.

j. Respondent, not the Board, shall be responsible for any costs and/or expenses incurred for practice monitoring, education, or any other action required in fulfilling the requirements of this order.

k. Respondent must provide written notification to every professional counseling and psychotherapy client who he provides any professional counseling and psychotherapy services to while this order is in effect, informing the client of the name, address, and telephone number of his practice monitor. Such notice may be provided in a mandatory disclosure statement.

l. During the pendency of this order respondent agrees that he will provide permission to and allow his practice monitor, to provide medical or psychological information or records to the Board in the event the practice monitor determines that respondent is not able to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice or has any condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care. As part of this stipulation and order respondent explicitly waives his right to maintain confidentiality of medical and psychological records and information provided to his practice monitor if the practice monitor determines that he is not able to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice or has any condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care.

11. All time periods and obligations under the probation in this order run only while respondent is engaged in the practice of professional counseling and psychotherapy in Colorado under the monitoring of a Board approved practice monitor. They are tolled and suspended at all other times.

12. If, after resuming the practice of professional counseling and psychotherapy, respondent again discontinues the practice of professional counseling and psychotherapy in Colorado, he shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date he ceased practicing and his new address if he has moved.

13. In the event respondent resumes his practice of professional counseling and psychotherapy in Colorado after stopping practice as described in paragraph 12, he shall provide written notification to the Board prior to resumption of his practice of professional counseling and psychotherapy in Colorado. Such notification shall include his address and the date on which he intends to resume practice.

14. As used in this stipulation and order, the terms "professional counseling", "practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as the term "professional counseling" as defined in C.R.S. §12-43-601(4).

15. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

16. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

17. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

18. This stipulation and order shall take effect on acceptance and signature by the Board.

19. This stipulation and order is a public record.


RICHARD A. RUSTER, Ph.D., LPC
Respondent

DATED: 4/5/99

ACCEPTED, SIGNED, AND ORDERED this 15th day of April, 1999.

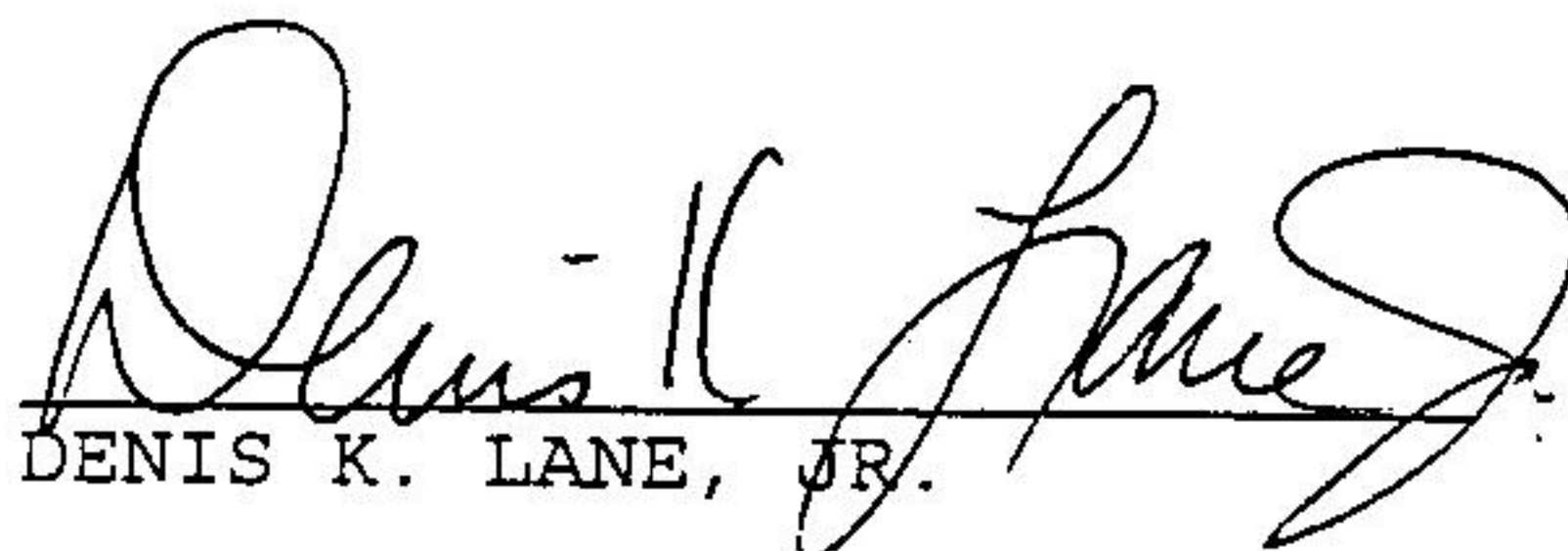
COLORADO STATE GRIEVANCE BOARD

SUE HENRY
Board Chair



APPROVED AS TO FORM

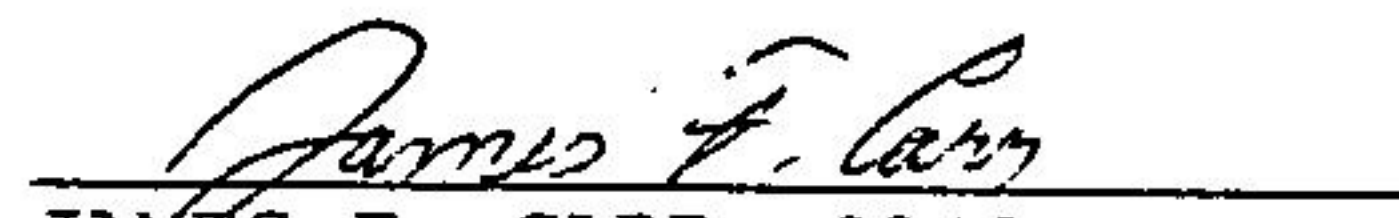
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